

do not fall within the definition of “dependant” as given in Explanation after sub-section(3) of Sec.82-C of the old act 1890 and the meaning assigned to it under sec.2(d) of the workmen’s Compensation Act.

126. Interim relief by railway administration: (1) Where a person who has made an application for compensation under Sec.125 desires to be paid interim relief, he may apply to the railway administration for payment of interim relief along with a copy of the application made under that section.

(2) Where , on the receipt of an application made under sub-section (1) and after making such inquiry as it may deem fit, the railway administration is satisfied that circumstances exist which require relief to be afforded to the applicant immediately , it may, pending determination by the Claims Tribunal of the actual amount of compensation payable under sec.124 (or 124-A) pay to any person who has sustained the injury or suffered any loss, or where death has resulted from the accident , to any dependant of the deceased, such sum as it considers reasonable for affording such relief , so however that the sum paid shall not exceed the amount of compensation payable at such rates as may be prescribed.

(3) The railway administration shall, as soon as may be, after making an order regarding payment of interim relief under sub-section (2) , send a copy thereof to the Claims Tribunal.

(4) Any sum paid by the railway administration under sub-section(2) shall be taken into account by the Claims Tribunal while determining the amount of compensation payable.

Comment

Section 126 provides for giving interim relief by railway administration in case of accidents.

127. Determination of compensation in respect of any injury or loss of goods.- (1) subject to rules as may be made, the rates of compensation payable in respect of any injury shall be determined by the Claims Tribunal.

(2) The compensation payable in respect of any loss of goods shall be such as the Claims Tribunal may, having regard to the circumstances of the case, determine to be reasonable.

Comment

Section 127 provides for the manner in which the rates of compensation payable in respect of injury , compensation for any loss of goods shall be determined by the Claims Commissioner.⁵